

PLJ 2022 Lahore (Note) 49

Present: MASUD ABID NAQVI, J.

MANZOOR HUSSAIN--Petitioner

versus

MUHAMMAD KHURSHEED--Respondent

C.R. No. 597 of 2017, decided on 5.4.2018.

Specific Relief Act, 1877 (I of 1877)--

----S. 12--Suit for specific performance--Sale agreement--Denial of sale agreement--Concurrent findings--Non-presentation of marginal witness--Contradiction amongst witnesses of plaintiff--Non-delivering of possession of land--Petitioner was failed to prove basic ingredients of sale--Challenge to--PW-2/Marginal witness was not present at time of execution of alleged agreement/Exh.P. 1-- Petitioner failed to place on record original agreement to sell and receipt of payment of sale consideration without any plausible justification--There are clear contradictions amongst witnesses regarding payment of sale consideration and execution of receipt-- Petitioner has failed to establish that possession of disputed land was delivered to him after execution of agreement--Petitioner failed to prove basic ingredient of sale--Courts below have thoroughly examined entire evidence of parties and reached at conclusion regarding controversy--Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in impugned judgments and decrees passed by Courts below--Revision petition dismissed.

[Para 4 & 6] A, B, C, D & F

Law of Limitation--

----Requirement of--Law of limitation requires that a person ‘ must approach a Court of law and adopt legal remedies with due care, diligence, without dilatoriness, without negligence and within time provided by law rather than choosing his own time for purpose of bringing forth a legal action at his own whim and desire.

[Para 4] E

2014 SCMR 513 and 2012 SCMR 730 *ref.*

Mr. Khurshid Naheed, Advocate for Petitioner.

Mr. Zahid Imran, Advocate for Respondent.

Date of hearing: 5.4.2018.

ORDER

Concise facts of this civil revision are that the petitioner/plaintiff filed a suit for specific performance of agreement to sell dated 10.07.2002

against the defendant. The petitioner/plaintiff pleaded in the plaint that defendant/respondent agreed to sell disputed land to the plaintiff in consideration of Rs.2,70,000/- by receiving

Rs. 1,70,000/- as earnest money against receipt/Ex.P.2 whereas remaining amount of Rs. 1,00,000/- was to paid after three months and the defendant would get the disputed land registered in the name of plaintiff but later on the defendant refused to act upon the agreement. Hence, the suit. The defendant filed the written statement and raised factual as well as legal objections and specifically denied the execution of agreement to sell/Exh.P.1 and receipt/Exh.P.2. Out of divergent pleadings of the parties, issues were framed by the learned trial Court. The parties produced their respective evidence and after recording the same, learned trial Court *vide* judgment and decree dated 28.04.2014 dismissed the suit. Feeling aggrieved, petitioner/plaintiff filed appeal and learned Additional District Judge *vide* judgment & decree dated 31.01.2017 dismissed the appeal. Being dissatisfied, the petitioner/plaintiff has filed the instant civil revision and challenged the validity of judgments and decrees passed by the learned Courts below.

2. Learned counsel for the petitioner/plaintiff vehemently argued that the petitioner/plaintiff proved the execution of the agreement to sell and payment of consideration by adducing cogent, relevant evidence, oral as well as documentary but the same is not properly appreciated by the Courts below. On the other hand, learned counsel for respondent supported the impugned judgments and decrees.

3. I have heard the arguments of learned counsel for the parties and minutely gone through the record as well as the impugned judgments and decrees.

4. After the denial of agreement to sell/Ex.P.1 and receipt/Exh.P.2 by the defendant, the petitioner/plaintiff had/has to prove execution of agreement to sell, payment of sale consideration to the seller and delivery of possession by adducing cogent, relevant, unimpeachable evidence, oral as well as documentary. The petitioner/plaintiff himself appeared and deposed as PW-1 while marginal witnesses namely Rusmat Ali and Rulya were produced as PW.2 and PW.3 and Sarfraz Hussain scribe appeared as PW.6. On the other hand, defendant himself appeared as DW. 1.

The plaintiff/PW. 1 deposed that he had entered into an agreement to sell with the defendant for the purchase of the suit property against consideration of Rs.2,70,000/-, he paid Rs. 1,70,000/- as earnest money. The agreement and the receipt of payment were executed in presence of witnesses namely Rusmat Ali and Rulya. While during cross-examination, one of the marginal witnesses of the agreement to sell namely Rusmat Ali/PW.2 conceded as under:

میں بوقت سودا موجود نہ تھا بلکہ میں شہر میں تحریر
Ex.P.1 کے وقت موجود تھا۔ میں نہ بتا سکتا ہوں دیہہ میں
کس مقام پر سودا ہوا۔ میں سودے کا وقت بھی نہ بتا سکتا

ہوں۔ یہ درست ہے کہ سودا کی رقم میرے سامنے طے نہیں ہوئی -----

Hence, the PW.2/marginal witness was not present at the time of execution of alleged agreement/Exh.P. 1. It is also important to mention here that the plaintiff/petitioner failed to place on record original agreement to sell and receipt of payment of sale consideration without any plausible justification. Insofar as payment of sale consideration is concerned, there are clear contradictions amongst the witnesses regarding the payment of sale consideration and execution of receipt. Similarly, the plaintiff/petitioner has failed to establish that possession of the disputed land was delivered to him after the execution of agreement as he conceded in cross-examination that his name is entered in revenue record without change till today as “فرارے”. Hence, by bare reading of the evidence of the petitioner/plaintiff, it becomes crystal clear that the petitioner/plaintiff failed to prove the basic ingredient of sale.

Even otherwise, agreement to sell was reduced into writing on 10.07.2002 but the plaintiff/petitioner filed the suit on 08.02.2010 after lapse of 07 years and 07 months from the due date, hence, the suit is badly barred by limitation. Law of limitation is considered as preventive in nature and serves as a major deterrent against the factors and element which can affect peace, tranquility and due order of state and society. The law of limitation requires that a person must approach a Court of law and adopt legal remedies with due care, diligence, without dilatoriness, without negligence and within the time provided by the law rather than choosing his own time for the purpose of bringing forth a legal action at his own whim and desire. Reliance is placed on “*Noor Din and others vs. Additional District Judge, Lahore and others* (2014 SCMR 513).

5. With respect to interference in concurrent findings of the Courts below, the Hon’ble Supreme Court of Pakistan in a case reported as *Administrator, Thal Development through EACO Bhakkar and others vs Ali Muhammad* (2012 SCMR 730) held that:

“Concurrent findings of the trial Court and appellate Court in favour of appellants were based on proper appreciation of evidence therefore, the same were not open to interference by the revisional Court in exercise of its jurisdiction under section 115, C.P.C. which is primarily meant for correction of jurisdictional defect/error and material illegalities/ irregularities, resulting in miscarriage of justice to a party.”

6. In the present case, no such defects have been pointed out by the learned counsel for petitioner/plaintiff in order to seek interference by this Court. Learned Courts below have thoroughly examined the entire evidence of the parties and thereafter reached at the conclusion regarding the controversy. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned

judgments and decrees passed by the learned Courts below, therefore, this revision petition is **dismissed.**

(Y.A.) Petition dismissed